



LGST 1010 Fall 2024 Midterm Exam Prep: Mock Questions & Answers

Law and Social Values (University of Pennsylvania)



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**LAW AND SOCIAL VALUES
LGST 101**

Sep 20, 2024

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Mock Exam

Instructions: This is a closed-book, closed-note exam consisting of two parts: 4 short answer questions and two essays. It is designed to be completed in 65 minutes; you will have 90 minutes to finish.

**Section I: Short Answer. Answer EACH question in 3-5 sentences.
This section will account for 40% of your grade.**

1. What is the difference between stakeholder and shareholder theory in terms of the stated purpose of a corporation?
 - **Stakeholder Theory:** Focuses on serving all parties affected by the company's actions, including employees, customers, suppliers, and the community, beyond just shareholders.
 - **Shareholder Theory:** Emphasizes that the corporation's primary goal is to maximize shareholder value, as shareholders are considered the owners of the company.
2. What is the difference between public and private law?
 - **Public Law:** Governs the relationship between individuals and the state, including constitutional, administrative, and criminal law.
 - **Private Law:** Governs relationships between individuals or private entities, such as contracts, property, and tort law.
3. When a defendant or a plaintiff in a case moves for summary judgment, what is the party asserting? What is the role of the judge and the jury in deciding such a motion?
 - When a party files for summary judgment, they are asserting that no genuine issue of material fact exists, and the case can be decided purely on legal grounds.
 - The **judge** determines if the legal standards are met for summary judgment; the **jury** does not play a role unless factual issues remain for trial.

4. In the context of a tort claim, what are the elements of negligence and what is the concept of foreseeability?
 - **Elements of Negligence:** Duty, breach, causation, and damages.
 - **Foreseeability:** Refers to whether a reasonable person would foresee the harm caused by the defendant's actions as a natural consequence.

Section II: Essays.

Answer two of the following questions. You must answer the first question.

1. In class we extensively discussed different theories of constitutional interpretation (such as originalism and the living constitution).

Please discuss how those theories were or were not applied in some of the cases we read and discussed in class as well as the strengths and weaknesses of these theories. Evaluate how effectively these theories support legal argumentation in general and in any of the cases we discussed. Which do you prefer and why?

2. Tort law aims to fairly compensate individuals who suffer harm as a result of the actions of others while establishing general rules that incentivize good conduct and deter future harm.

How are these goals implemented through class action suits based on negligence? Is negligence an effective standard to achieve the goals of tort law? Do you believe that the tort law system is effective, requires change or should be replaced? What changes would you make?

Use cases and examples that we have discussed in class.

3. The theme of the balance between state and federal power has been discussed throughout class, particularly in our analysis of the U.S. Supreme Court's current and historic interpretations of the Commerce Clause. It is also reflected in the original design of the Constitution by the framers.

In your view, how has that balance of federalism been struck at different points? You can and should reference specific cases or issues.

Is the Commerce Clause the appropriate method for addressing social issues? Is there a better method? Explain.

Section II: Essays

1. Theories of Constitutional Interpretation

- **Originalism:** The belief that the Constitution should be interpreted based on its original meaning at the time of drafting.
 - *Strengths:* Offers stability and predictability; minimizes judicial activism.
 - *Weaknesses:* Critics argue it is inflexible and doesn't account for societal changes.
- **Living Constitution:** The idea that the Constitution evolves with changing societal values.
 - *Strengths:* More adaptable to modern issues and evolving standards of decency.
 - *Weaknesses:* Can lead to more subjective interpretation by judges.

Example: In *District of Columbia v. Heller* (2008), the majority opinion used **originalist** reasoning to assert that the Second Amendment protects an individual right to bear arms. A **living constitution** approach

might argue for stricter gun regulations due to modern safety concerns.

2. **Negligence and Tort Law through Class Actions**

- Class actions allow plaintiffs to aggregate claims to efficiently address widespread harm caused by negligence, ensuring broader compensation and behavior modification by companies.
- **Negligence** is effective for holding parties accountable, as it creates legal consequences for foreseeable harm.
- Potential reforms could include caps on damages to prevent excessive litigation or restructuring the system to more clearly define negligence standards to reduce frivolous lawsuits.

3. **Federalism and the Commerce Clause**

- Over time, the balance between federal and state power has shifted. In cases like *Gibbons v. Ogden* (1824), the Supreme Court took a broad view of the Commerce Clause, expanding federal power. However, more recent cases like *United States v. Lopez* (1995) have limited Congress's ability to regulate local activities under the Commerce Clause.
- The Commerce Clause is often used to address social issues such as civil rights, but its use can sometimes overextend federal authority. Alternative methods, like state-level initiatives or constitutional amendments, might better balance state autonomy.

This review should help prepare you for the types of questions and discussions expected in your exam.